

Section 5. Imports by Air

5.1 Law and General Procedure

5.1.1 General legal position and impact

Under Article 133 UCC, the operator of an aircraft entering the customs territory of the Union shall notify the arrival to the customs office of first entry upon arrival of the means of transport. Aircraft arriving into or departing from Ireland are governed by sections 10, 11 and 12 of the Customs Act 2015.

Military aircraft are not to be regarded as coming within the provisions of this legislation and their operations are not to be interfered with by officers, but any suspicion of illicit traffic by such aircraft is to be brought to the notice of the relevant Assistant Principal.

The general effect of the legislation is that:

- (i) Aircraft arriving in Ireland, save as permitted by Revenue, see [paragraph 5.6](#) below, must first land at a Customs controlled airport and complete all Customs formalities in relation to the aircraft, its cargo, stores and passengers. In Ireland the main customs controlled airports are Dublin, Cork and Shannon. In addition there are 18 appointed aerodromes in the State that have been approved to receive flights from abroad but subject to restrictions as regards the type of flights and certain conditions as regards prior notifications etc. (section 6(1) and (3) of the Customs Act 2015).
- (ii) The landing of any aircraft coming from abroad other than at a Customs controlled airport must be shown to be a forced landing and a Customs officer must be notified of the aircraft's landing (Section 10 (6) and (8) of the Customs Act 2015).
- (iii) Aircraft departing on a flight to a destination outside the Customs territory and/or the fiscal territory of the EU, must not, unless otherwise authorised or exempted, depart from any place other than a Customs controlled airport. Please note that section 10 of the Customs Act refers only to aircraft departing the State and does not make a distinction for non-EU flights (section 10 (7) and (8) of the Customs Act 2015).
- (iv) An officer has a right of access to all Customs controlled airports or licensed aerodromes, and a right to board and inspect any aircraft and any goods loaded thereon (section 25 and 27 of the Customs Act 2015).

The penalty for a breach of section 10² of the Customs Act 2015 is provided for in section 10(11) of the Customs Act 2015. A person who commits an offence is liable on summary conviction to a fine of €5,000.

² Specifically s.10 (1),(2),(3),(4),(5),(7),(8), (9), (10) of the Customs Act 2015.